

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 4
(EDIS Doc. ID 892526, Mot. No. 1478-016)**

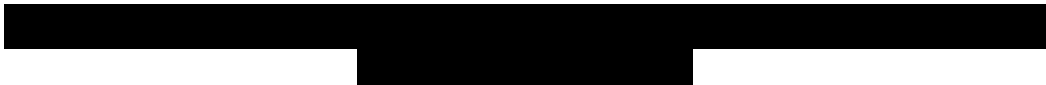


TABLE OF CONTENTS

	<u>Page</u>
I. INTRODUCTION	1
II. ARGUMENT	2
A. Oura did not fail to identify Ring 5 or [REDACTED] during discovery	3
B. Oura bore no burden to set forth full noninfringement contentions until Samsung accused the Ring 5 and [REDACTED] rings of infringement	5
C. Oura bore no burden to address the Oligosaccharides factors in its discovery responses	9
D. Because Oura bore no burden to set forth its full noninfringement contentions, its contentions do not limit the opinions that Dr. Mortazavi could offer in his expert report	9
E. The Ring 5 and [REDACTED] Rings Satisfy the Oligosaccharides Factors.....	12
III. CONCLUSION.....	16

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>Certain Audio Players and Controllers</i> , Inv. No. 337-TA-1191 (Sept. 17, 2020) (EDIS Doc. ID 719871)	3, 5
<i>Certain Crafting Machines and Components Thereof</i> , Inv. No. 337-TA-1426, Init. Det. at 39 (Jan. 21, 2026) (EDIS Doc. ID 869643).....	10, 11
<i>Certain Electronic Digital Media Devices and Components Thereof</i> , Inv. No. 337-TA-796, Comm’n Op. at 105 (Sept. 6, 2013).....	2
<i>Certain Human Milk Oligosaccharides and Methods of Producing the Same</i> , Inv. No. 337-TA-1120, Comm’n Op. at 18 (June 8, 2020) (EDIS Doc. ID 712205)	passim
<i>Certain Photovoltaic Trunk Bus Cable Assemblies and Components Thereof</i> , Inv. No. 337-TA-1438, Init. Det. at 105-06 (Feb. 6, 2026) (EDIS Doc. ID 873421)	13
<i>Gamevice, Inc. v. Nintendo Co.</i> , No. 18-CV-01942-RS, 2020 WL 13739193 (N.D. Cal. June 4, 2020).....	10

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) hereby oppose Samsung’s Motion *in Limine* No. 4 (“MIL4”) concerning testimony and evidence about Oura’s Ring 5 and [REDACTED] products. The Court will undoubtedly recognize many of the arguments from the parties’ briefing concerning Oura’s motion for summary determination of noninfringement (EDIS Doc. ID 887851; Motion No. 1478-007) and Oura’s motion to strike infringement opinions offered for the first time by redirect deposition testimony (EDIS Doc. ID 887862; Motion No. 1478-008), for which the Court has already issued Order Nos. 14 & 15, but the ultimate issues presented here are different.

Here, Samsung seeks to exclude Oura from introducing evidence and argument concerning the Ring 5 and [REDACTED] products for which Oura identified as noninfringing more than a month before the close of fact discovery, and concerning which Oura produced hundreds of technical documents, physical samples, source code, and even corporate testimony by deposition. As the Court’s Order Nos. 14 & 15 suggest, a key issue will be Oura’s statement in April, 2026 that these alternative products would not infringe the Asserted Patents “for at least the same reasons” as the Gen. 4 ring, along with another statement that the Court appears to have misunderstood (discussed in detail below). But, as explained herein, Oura should not be precluded from full arguments for noninfringement, as Samsung never set forth infringement contentions for these products but rather explicitly limited its final infringement contentions to “Oura Ring 4,” and thus Oura never had the obligation to set forth any final noninfringement contentions. Its positions were thus not “locked” until Samsung took a position on infringement, which Samsung never did until its experts’ redirect deposition testimony.

Ultimately, it would be manifestly unfair to preclude Oura from introducing its full evidence and argument concerning these redesigned products when the positions that Samsung

seeks to exclude were presented before Samsung first took a position on infringement by redirect deposition testimony on the final day of expert discovery, and those opinions were not excluded (Order No. 15). As explained herein, Oura's Ring 5 and [REDACTED] rings are in fact ripe for adjudication, were disclosed to Samsung as required during discovery, and Samsung never triggered a requirement for final infringement contentions by accusing these products of infringement. Oura should not be excluded from introducing evidence regarding its products to obtain an adjudication of them, and Samsung's fourth MIL should be denied in full.

II. ARGUMENT

Samsung's approach to Ring 5 and [REDACTED] attempts to have its cake and eat it too. It wishes to have this Court bless its approach of ignoring Oura's disclosure of the Ring 5 and [REDACTED] rings on April 29, 2026, well before the close of fact discovery, and Oura's extensive production of technical evidence for these products throughout discovery, and yet rule that the Ring 5 and [REDACTED] rings "still fall within the scope of the Notice of Investigation and, thus, any Limited Exclusion Order that should issue." See MIL4 at 2.

Such an head-in-the-sand approach is entirely contrary to Commission precedent for adjudication of redesigned and alternative products. *Certain Human Milk Oligosaccharides and Methods of Producing the Same*, Inv. No. 337-TA-1120, Comm'n Op. at 18 (June 8, 2020) (EDIS Doc. ID 712205) ("*Oligosaccharides*") (the Commission has a "policy in favor of adjudicating redesigns to prevent subsequent and potentially burdensome proceedings that could have been resolved in the first instance in the original Commission investigation"); see also *Certain Electronic Digital Media Devices and Components Thereof*, Inv. No. 337-TA-796, Comm'n Op. at 105 (Sept. 6, 2013) ("[complainant] did not seem to want the design around products adjudicated, but still wanted to be able to argue that they fall within the scope of any exclusion order that may issue.").

[REDACTED]

Once a product is identified and put forth for adjudication, it is complainant's burden to show infringement. *Oligosaccharides*, Inv. No. 337-TA-1120, Comm'n Op. at 23. "If [a complainant] and its expert deemed such evidence to be insufficient, [complainant] could and should have taken available procedural steps, such as a motion to reopen discovery or compel further discovery, because the burden of establishing infringement remains with [complainant]." *Id.* Because complainant bears the burden of infringement, the respondent does not bear a burden to put forth noninfringement contentions before the complainant contends that infringement has occurred. See *Certain Audio Players and Controllers*, Inv. No. 337-TA-1191, Order No. 19 at 2-4 (Sept. 17, 2020) (EDIS Doc. ID 719871) (finding that sufficient disclosure occurred based on identification of products and relevant evidence, despite an argument that "the redesigns have not been sufficiently disclosed because Google has not provided a response to Interrogatory No. 21 as to how the alleged redesigns are non-infringing"). Stated another way: disclosures of noninfringement positions are not a part of the *Oligosaccharides* test for adjudication, and a respondent never bears a burden to set forth its final positions on noninfringement before products are accused of infringement.

Thus, given the applicable burden-shifting framework and the discovery concerning Ring 5 and [REDACTED] that was provided, Oura's Ring 5 and [REDACTED] rings are squarely eligible for adjudication and evidence and argument concerning these products may be presented at the hearing.

A. *Oura did not fail to identify Ring 5 or [REDACTED] during discovery*

Samsung, throughout its motion, argues that Oura "failed to disclose Ring 5 and [REDACTED] as noninfringing redesigns or alternatives to be adjudicated in this Investigation." See MIL4 at 1-2, 4-5, 9. As this Court has recognized (see Order No. 14 at 3, n. 1), this is not correct.

[REDACTED]

On April 29, 2026, Oura amended its interrogatory responses to affirmatively identify Ring 5 and [REDACTED] as rings for which it would seek a determination of noninfringement. For example, in response to Samsung's Interrogatory No. 1 seeking "a complete identification of each Accused Product," Oura specifically stated that it "further identifies" the Ring 5 ([REDACTED] and [REDACTED] as noninfringing products. See Ex. 1 (April 29 Interrogatory Responses) at 12-13, 79. The interrogatory response further identified the technical documents previously produced in the 1468 Investigation (and subject to a cross-use discovery agreement) as being particularly relevant. *Id.* at 13, 15, 17. Oura also noted that "source code for the [REDACTED] and [REDACTED] rings" for both firmware and Oura Application code continued to be available for inspection on source code laptop since February 11, 2026. *Id.* at 12.

Later, in its May 13, 2026 supplemental interrogatory responses, Oura identified additional documents concerning Ring 5 and [REDACTED] produced in this Investigation as additional particularly relevant documents for interrogatories 1-5, thus identifying relevant information for noninfringement. See Ex. 2 at 13, 16, 18, 21, 23. And in its final interrogatory responses on May 27, 2026, Oura noted that Samsung had failed to advance any infringement contentions for "any other Oura product" besides the Oura Gen. 4 ring and stated that "it has produced documents from which Complainants may ascertain relevant information responsive to this Interrogatory, including without limitation those cited in Interrogatory Nos. 1-5." See Ex. 3 at 82-84. In fact, Samsung's own counsel specifically stated on May 19, 2026, during the deposition of Mr. Larson, that Ring 5 ([REDACTED] and [REDACTED] were within the scope of accused products. Ex. 4 (Larson Dep. Tr.) at 11:22-12:10; see also *id.* at 26:15-27:5, 44:9-45:6, 61:6-9 (Mr. Larson answering questions regarding the [REDACTED] and [REDACTED] rings).

[REDACTED]

Samsung’s protest that “[t]he word ‘redesign’ or ‘alternative product’ appears nowhere in the 349 pages of Oura’s supplemental interrogatory response setting forth its non-burden contentions” (MIL4 at 4) misses the point. As this Court has recognized (Order No. 14 at 3, n. 1), there are no magic word requirements in the *Oligosaccharides* test, and Samsung did not have an interrogatory specifically requesting an identification of redesigned or alternative products. To meet its burden under the *Oligosaccharides* test, Oura was required to identify its alternative products and provide discovery, and it did so.

B. Oura bore no burden to set forth full noninfringement contentions until Samsung accused the Ring 5 and [REDACTED] rings of infringement

Next, Samsung argues that “[o]ther than referring back to its prior Ring 4 noninfringement contentions, Oura provided no specific noninfringement contentions for Ring 5 or [REDACTED] during fact discovery. See MIL4 at 1, 2, 5-9. But until Samsung accused Ring 5 or [REDACTED] of infringement (and it never did so), Oura was under no obligation to identify any noninfringement positions.

A respondent bears the initial burden to produce discovery and identify products for adjudication and otherwise meet the *Oligosaccharides* framework, which does not include a requirement of noninfringement contentions. *Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 18-19; *Certain Audio Players*, Inv. No. 337-TA-1191, Order No. 19 at 2-4 (finding that sufficient disclosure occurred even without noninfringement contentions). But once a respondent does so, the burden shifts: the complainant must actually investigate that product and show infringement or else “take[] available procedural steps, such as a motion to reopen discovery or compel further discovery, because the burden of establishing infringement remains with” the complainant. *Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 23. A complainant may not simply ignore the new products—as Samsung did—and seek to have them included in any exclusion order that may issue.

[REDACTED]

Thus, Oura’s preliminary noninfringement positions—preliminary because they preceded any contention of infringement by Samsung to which Oura could then respond, not because they were absent from Oura’s final contentions¹—that Ring 5 and [REDACTED] do not infringe “for at least the same reasons as set forth in Oura’s First Supplemental Response to Interrogatory No. 7,” by its use of “at least,” did not preclude other, or different, noninfringement contentions. Nor did it absolve Samsung from any responsibility to investigate these products. As Oura noted in its final contentions: “Oura also reserves the right to supplement or amend its response based on any change in Samsung’s infringement contentions and positions... Samsung provides no support that any other Oura product [besides the Oura Gen. 4 ring] meets the limitations of the patents asserted in this investigation.” Ex. 3 at 82-84.

And, respectfully, this statement is not “stating repeatedly and unequivocally that its Ring 4 was the same as Ring 5 and [REDACTED] for purposes of assessing non-infringement.” See Order No. 15 at 3. The contentions merely suggest that “at least the same reasons” for noninfringement would apply, not that the products were the same, representative, or that other arguments could not also apply. A product might not infringe for the same reasons as a predecessor product, and also fail to meet other limitations of the asserted claims that are complainant’s burden to prove. For example, the documents produced and referred to in Oura’s April interrogatory responses as relevant to an infringement analysis show clearly that the PCBs of Ring 5 and [REDACTED] are different than that of

¹ The Court’s Order No. 15 faults this “preliminary” terminology on the basis that the positions existed in Oura’s final contentions, but Oura respectfully reiterates its argument that such positions were indeed “preliminary” on the basis of the distinction above, namely that Samsung had not yet provided a contention of infringement to which Oura would need to respond. Thus, the positions from April were indeed preliminary until the burden shifted to Oura by Samsung contending infringement, and Samsung never did.

[REDACTED]

Oura's Gen. 4 ring (*see, e.g.*, Ex. 17, Ex. 20), and this was stated in deposition testimony too (*see, e.g.*, Ex. 10 at 65:10-72:10, 150:8-15, 168:24-169:13).

Oura also respectfully disagrees its final noninfringement contentions "stated that its non-infringement positions for each of the '359, '677, '675, and '789 patents applied equally to all versions and sizes of the Oura accused products," and asks for a closer look. *See* Order No. 15 at 3. First, Oura's final noninfringement contentions made clear that Samsung had only accused one Oura ring (the Gen. 4 ring)² and the corresponding applications, and distinguished this accused ring from Oura's alternative rings:

Samsung limited its infringement contentions to Oura Ring and Corresponding Applications, which it defines as the Oura Accused Product. Samsung provides no support that any other Oura product meets the limitations of the patents asserted in this investigation. Oura objects to any attempt by Samsung to apply its allegations to other Oura products.

Ex. 3 at 82. Oura reserved "the right to supplement or amend its response based on any change in Samsung's infringement contentions and positions." *Id.* It must be emphasized that Oura's subsequent language (*i.e.*, the language pointed to by the Court) that its Gen. 4 noninfringement positions "apply equally to all of the versions and sizes of the Oura Accused Product" (emphasis on product, singular, thereby quoting Samsung's language referring to Gen. 4) does not apply to Ring 5 and [REDACTED]. The language is unchanged from Oura's initial noninfringement contentions on March 30, 2026, which were made before Ring 5 and [REDACTED] were at issue (*see id.* at 30, 42, 59, 71), and reflects that the Oura Gen. 4 ring is offered in different versions (*e.g.*, ceramic or metallic, which have different housings) and sizes.

² Samsung's final infringement contentions set forth the following definition: "Oura Ring 4 ('Oura Accused Product')." *See* Ex. 5 (Exhibit 4 to Samsung's final infringement contentions) at 1. Oura used this language.

[REDACTED]

Oura does not, and has never, referred to its different *generations* of rings as different “*versions*” of the same ring.³ Thus, this latter statement, repeated from its earlier contentions, is not “stating repeatedly and unequivocally that its Ring 4 was the same as Ring 5 and [REDACTED] for purposes of assessing non-infringement” Order No. 15 at 3. Instead, the statement noted only that the Gen. 4 noninfringement positions “apply equally to all of the versions and sizes of the Oura Accused Product” (*i.e.*, Oura Ring 4 metallic and Ring 4 Ceramic versions, and all sizes of those versions). Oura respectfully submits that Court erred in construing this statement as supposedly unambiguous evidence that Oura conceded representation across all generations, including Gen. 5 and [REDACTED] Order No. 15 at 3 (“Oura itself provided that evidence Oura did not have to make those statements, but it did.”). As noted above, Oura did not.

Ultimately, Oura was under no obligation to set forth final noninfringement contentions prior to accusations of infringement by Samsung, which were made for the first time by redirect deposition testimony after expert reports (and Oura’s positions that Samsung now seeks to strike) were submitted. Oura’s single statement in April that Ring 5 and [REDACTED] do not infringe “for at least the same reasons as set forth in Oura’s First Supplemental Response to Interrogatory No. 7” did not preclude other and different noninfringement contentions at a later time should Samsung have set forth infringement contentions, and Oura did not make any statements that other arguments would not apply. Stated differently, Samsung’s final infringement contentions were

³ Some generations of Oura Ring are offered in different versions or variants. For example, Oura Ring Gen. 2 was available in “Balance” and “Heritage” versions and Oura Ring Gen. 3 included “Heritage” and “Horizon” versions. Similarly, Oura Ring Gen. 4, as noted above, is offered in Oura Ring 4 (metallic) or Oura Ring 4 Ceramic versions. Each version of each Generation is also offered in multiple sizes. Indeed, Samsung’s own experts also recognized these variations within the accused Oura Ring Gen. 4. Ex. 6 (Welch Expert Report) ¶ 3 (Defining “Accused Product” as “Oura Ring 4, including any colorways, finishes, and ceramic variants thereof”); Ex. 7 (Warren Expert Report) ¶ 3 (“Oura Ring 4, including any colorways, finishes, and ceramic variants thereof (collectively, the ‘Accused Product’).”).

[REDACTED]

explicitly limited to just the different versions of Oura Gen. 4 ring, so Oura never needed to set forth final noninfringement contentions for Ring 5 or [REDACTED] but it reserved its right to do so.

C. *Oura bore no burden to address the Oligosaccharides factors in its discovery responses*

Samsung also argues that “Oura’s discovery responses also never set forth any contentions regarding how Oura’s unreleased products were ripe for adjudication as redesigns under the Oligosaccharides factors.” MIL4 at 2, 5. But once again, Oura was under no obligation to do so.

It is a respondent’s burden to provide sufficient discovery and otherwise meet the Oligosaccharides factors for adjudication, but there is no requirement that it address the Oligosaccharides factors in its interrogatory responses. *See, e.g., Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 20-22 (noting factors met, such as importation, without specific discovery responses that they were met). The lack of a requirement to address the Oligosaccharides factors is all the more clear because Samsung did not have any interrogatories requesting an analysis of these factors. *See generally*, Ex. 3. This argument is thus without merit.

D. *Because Oura bore no burden to set forth its full noninfringement contentions, its contentions do not limit the opinions that Dr. Mortazavi could offer in his expert report*

As established, Oura was under no obligation to identify any noninfringement positions, let alone its final noninfringement positions, until Samsung set forth infringement contentions. Thus, Oura was under no obligation to set forth final noninfringement arguments concerning Ring 5 and [REDACTED] products Samsung explicitly did not accuse of infringement in its own final contentions (*see* Ex. 5 at 1)—prior to Dr. Mortazavi’s rebuttal report. As argued above, Oura’s April 29, 2026 statement that Ring 5 and [REDACTED] do not infringe “for at least the same reasons as set forth in Oura’s First Supplemental Response to Interrogatory No. 7” did not preclude other, or different, noninfringement contentions should Samsung have put forth infringement contentions;

[REDACTED]

in its final contentions, Oura pointed out that Samsung had cabined its infringement theory to the Gen. 4 ring, and stated that “Oura also reserves the right to supplement or amend its response based on any change in Samsung’s infringement contentions and positions.” Ex. 3 at 82.

Basic fairness dictates that Oura be allowed to present noninfringement positions that were provided prior to Samsung taking any position on infringement (which was first done in redirect deposition testimony after expert reports). By Samsung’s unilateral refusal to acknowledge that Oura’s alternative products were in the Investigation or to accuse them of infringement, Oura should not be forced to put forth noninfringement contentions prior to Samsung putting forth infringement contentions just because Oura wished to put forth an expert report on noninfringement. A holding to the contrary would incentivize every complainant to hold back infringement contentions and wait for a respondent to describe noninfringement contentions, since otherwise the respondent would be precluded from setting forth an expert report (which would need to address infringement in order to show that discovery was provided such that an opinion on noninfringement *could* be made). Because a respondent effectively does need to address noninfringement with an expert report to show that the fourth *Oligosaccharides* factor has been met, complainants would be greatly incentivized to hold back infringement contentions and “go second” if there were not a rule to the contrary.

In analogous circumstances, the Northern District of California explained that “because [defendant] has the burden of proof as to invalidity, and [plaintiff] reserved its right to contest [defendant’s] invalidity contentions,” it would not strike opinions in a rebuttal expert report not disclosed in interrogatory responses (even though a substantive response was given) because defendant “cannot fault [plaintiff] for not yet having rebutted an issue about which [defendant]

[REDACTED]

had not yet made its initial showing.” *Gamevice, Inc. v. Nintendo Co.*, No. 18-CV-01942-RS, 2020 WL 13739193, at *6-7 (N.D. Cal. June 4, 2020).

The record of *Certain Crafting Machines* is also tangentially instructive. There, the record shows that the respondents merely “disclosed” the redesigned products in an early interrogatory response, but the relevant noninfringement argument was only later made by expert report. *Certain Crafting Machines and Components Thereof*, Inv. No. 337-TA-1426, Init. Det. at 39 (Jan. 21, 2026) (Cheney, Chief ALJ) (EDIS Doc. ID 869643). And although the support or lack thereof in noninfringement contentions was not apparently litigated, the ALJ relied upon the noninfringement opinions of set forth in the respondents’ rebuttal expert report. *Id.* at 40. Precedent would thus suggest that noninfringement contentions do not need to precede a noninfringement expert opinion so long as there have not been contentions of infringement.

Ultimately, after its disclosures of April 29, 2026, Oura believed (with cause) that the ball was in Samsung’s court to show infringement. When Samsung’s May 13, 2026 deadline for final infringement contentions passed with Samsung explicitly defining the “Oura Accused Product” as only the “Oura Ring 4” (see Ex. 5 at 1) and not setting forth any contentions as to Ring 5 or [REDACTED] or even seeking further discovery as *Oligosaccharides* instructs, Oura understood that the dispute between the parties was to be entirely about whether these alternative products were eligible for adjudication, not whether they infringed any asserted patents.⁴ Oura stated as much in its final infringement contentions. See Ex. 3 at 82. Thus, Oura’s expert opinions were submitted as much to show that the fourth *Oligosaccharides* factor was met (that discovery allowed an expert to assess

⁴ Indeed, Samsung’s opposition to Oura’s motion for summary determination reinforced this belief, as Samsung opposed the alternative products being eligible for adjudication and requested in the alternative to reopen fact and expert discovery, but did not contend that it could establish infringement of the ’789 Patent based on the record of the case, including representativeness. See Samsung’s Opposition to Summary Determination (EDIS Doc. ID 889193) at 18-21.

[REDACTED]

infringement) as to show noninfringement, because Samsung had already failed its burden to show infringement by not setting forth infringement contentions or expert opinion, and thus the dispute should have been limited to just satisfaction of the *Oligosaccharides* factors. If Oura understands the Court's Order No. 15 correctly, the Court has given Samsung a lifeline on this issue, allowing expert testimony on representativeness offered for the first time in redirect deposition testimony which Oura's expert will not have had a chance to rebut. If Oura's expert cannot provide his own opinion on noninfringement, offered before Samsung offered its opinion, Oura will be deeply prejudiced.

E. The Ring 5 and [REDACTED] Rings Satisfy the *Oligosaccharides* Factors

Samsung makes clear that it does not contest the first *Oligosaccharides* factor. As previously briefed (*see* Motion No. 1478-007) this factor is met.

The Court's Order No. 14 suggests, but does not explicitly hold, that the Court has found that the second and third *Oligosaccharides* factors have been satisfied. *See* Order No. 14 at 3, n. 1 ("The question (about which there is a dispute) is whether Oura provided sufficient discovery for them to be adjudicated."). For completeness, and because these factors may remain in dispute, Oura addresses the second and third (as well as the fourth) *Oligosaccharides* factors herein.

Factor 2 (Importation): Notwithstanding the stipulation of importation of Ring 5 and [REDACTED] which Samsung acknowledges (MIL4 at 10) and is dispositive, and Oura's production of physical samples of Ring 5 and [REDACTED] (Ex. 25), which Samsung does not acknowledge and is also dispositive, Samsung argues that Oura's "misleading discovery responses" shows no importation of Ring 5 (Samsung is silent as to [REDACTED]). This argument rings hollow.

Samsung had already been provided clear testimony that it was merely Oura's future plan to manufacture Ring 5 in the United States:

[REDACTED]

Q. And which Rings are going to be manufactured in the U.S. manufacturing facility?

A. The plan is for [REDACTED] to be manufactured in the U.S. manufacturing facility.

Q. And who is going to be the U.S. manufacturer?

A. [REDACTED]

[...]

Ex. 8 (Vincent Tr.) at 62:22-63:22. Mr. Vincent also testified that “*Oura is not currently* [REDACTED]” and that the Fort Worth facility would begin production “[REDACTED].” *Id.* at 22:3-23:16.

Thus, there was nothing “misleading” to Oura’s statement that Ring 5 “will be manufactured in the United States in Fort Worth, Texas,” especially given that this response specifically also cited deposition testimony in support (“Chapp Dep. at 106:9-19”) that informed Samsung that Oura’s manufacture of [REDACTED]. *See* Ex. 9 (Chapp Tr.) at 106:9-19. Simply put, Ring 5 and [REDACTED] have been imported, and the evidence provided to Samsung during discovery clearly showed this.

Factor 3 (Fixed in Design): Ring 5 and [REDACTED] are “sufficiently fixed for adjudication.” *See Certain Photovoltaic Trunk Bus Cable Assemblies and Components Thereof*, Inv. No. 337-TA-1438, Init. Det. at 105-06 (Feb. 6, 2026) (EDIS Doc. ID 873421).

By May 2026 (during fact discovery of this Investigation), Ring 5 had already entered [REDACTED] advance of the May 28, 2026 launch. Ex. 8 (Vincent Dep. Tr.) at 21:13-20, 57:6-10, 63:18-64:6. Ring 5’s software code was produced on February 11, 2026. Ex. 11. There can be no doubt that Ring 5 is fixed in design.

[REDACTED]

[REDACTED] is also sufficiently fixed in design for adjudication, and has been fixed in design

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] code was produced on February 11, 2026. Ex. 11.

To contest fixedness, Samsung only argues that “Oura’s corporate witness testimony suggested the opposite—that Ring 5’s design [REDACTED] [REDACTED] [REDACTED] [REDACTED].” See MIL4 at 10. This misportrays the applicable testimony. Mr. Chapp’ testimony was that [REDACTED]

[REDACTED] (see Ex. 9 at 100:8-22, 102:15-18), and Samsung certainly seeks adjudication of the Oura Gen. 4 ring. That any product may be modified in the future does not prevent adjudication.

Factor 4 (Sufficient Discovery): Oura provided substantial discovery regarding the technical features of Ring 5 and [REDACTED]

Regarding the ’675, ’677, and ’359 Patents, Samsung’s motion does not address these software patents at all, and the software for Ring 5 and [REDACTED] was produced on February 11, 2026. Ex. 11. The software code allows evaluation of the products with respect to these patents.

Regarding the ’789 Patent, Samsung concedes, as it must, that Oura produced numerous technical documents for Ring 5 and [REDACTED] well before the close of fact discovery (*see generally*, Oura’s Motion for Summary Determination (Motion No. 1478-007) at 3-9, detailing production of over two hundred technical documents for these rings from January 26, 2026 onwards). Samsung merely argues that “none of those materials provided the information needed to evaluate the

[REDACTED]

relevant internal PCB structures of Ring 5 and [REDACTED] MIL4 at 11. But “[i]f [Samsung] and its expert deemed such evidence to be insufficient, [Samsung] could and should have taken available procedural steps, such as a motion to reopen discovery or compel further discovery, because the burden of establishing infringement remains with [Samsung].” *Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 23.

And indeed, sufficient discovery was provided. Key technical documents produced during discovery that detailed the PCB structure of the Ring 5 and [REDACTED] rings include Ex. 14 & Ex. 15 (Ring 5 PCB schematics); Ex. 16 ([REDACTED] PCB schematic); Ex. 17 & Ex. 18 (Ring 5 PCB stackup diagrams); Ex. 19 & Ex. 20 ([REDACTED] PCB stackup diagrams); Ex. 21 & Ex. 22 (exemplary teardown photos of Ring 5); Ex. 23 & Ex. 24 (exemplary teardown photos of [REDACTED]).

Furthermore, critically, Oura produced the rings themselves, which Samsung could have torn down, on March 31, 2026. Ex 25. This alone would have been enough to adjudicate infringement long before the close of fact discovery, as the PCBs are included therein. Samsung was not deprived of the opportunity to create teardown images itself.

Finally, Oura also made available witnesses who provided substantial deposition testimony on technical details of both Ring 5 and [REDACTED] including the technical differences and the relevant PCB structure well before the close of expert discovery. *See, e.g.*, Ex. 10 (Christophy Dep. Tr.) at 65:10-72:10, 150:8-15, 168:24-169:13.

Not once did Samsung ever suggest that Oura’s production, whether related to technical documents, native CAD files, product images, teardown images, source code, physical samples, components, build of materials, or deposition witnesses was lacking in any capacity. Substantial discovery was provided—all experts purport to come to conclusions on infringement based on the

[REDACTED]

discovery that was provided—and if Samsung believed that more was needed, it was its burden to make a request. *Oligosaccharides*, Inv. No. 337-TA-1120, Comm’n Op. at 23. It did not.

Accordingly, the *Oligosaccharides* test for adjudication has been met, and it is Samsung’s burden to show infringement by Ring 5 and [REDACTED]

III. CONCLUSION

For the reasons herein, Samsung’s fourth motion *in limine* should be denied in full.

Dated: September 2, 2026

Respectfully submitted,

s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Tariq Javed

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Séké Godo

Angeline Premraj

Paul Choi

So Ra Ko

Jaspreet Momi

Jennifer Weinberg

MAYER BROWN LLP

1999 K Street, NW

Washington, DC 20006-1101

Tel.: +1 202.263.3000

Robert G. Pluta

Nicholas H. Ciulla



MAYER BROWN LLP
71 S. Wacker Drive
Chicago, IL 60606
Tel.: +1 312.782.0600

Brian W. Nolan
MAYER BROWN LLP
1221 Avenue of the Americas
New York, NY 10020
Tel.: +1 202.506.2500

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com



EXHIBITS 1-10
REDACTED IN ENTIRETY

EXHIBIT 11

Jas Vidwan

From: Tiffany A. Miller
Sent: Wednesday, February 11, 2026 5:09 PM
To: #OMM-SAMSUNG-OURA; z/Reebok_ITC_1468; ZeppHealthITC1468
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS
Subject: ITC Inv. No. 337-TA-1468 - Source Code Review and Availability

Counsel,

Now that the Parties have moved to enter the supplement to the protective order with respect to source code, please let us know whether Respondents' source code and firmware is ready for inspection. Please also let us know where the source code laptops will be made available for inspection.

Oura's source code for Domestic Industry Product is ready for inspection in Mayer Brown's Washington D.C. office. Oura's source code computer is running the Windows 11 operating system. The following programs for analyzing source code are also installed on the source code computer: Notepad++, Powergrep, ExamDiff Pro, Cygwin, and Adobe Acrobat Reader. Please let us know if there are any additional software that Respondents want installed on the source code computer.

Regards,
Tiffany

Tiffany A. Miller

Partner

Mayer Brown LLP

1999 K Street, NW

Washington, DC 20006-1101 United States of America

T +1 202 263 3121

tmiller@mayerbrown.com

mayerbrown.com

[REDACTED]

EXHIBITS 12-24
REDACTED IN ENTIRETY



EXHIBIT 25

[REDACTED]

Jas Vidwan

From: Tiffany A. Miller
Sent: Tuesday, March 31, 2026 7:43 PM
To: #OMM-SAMSUNG-OURA; Reebok_ITC_1468@cooley.com; ZeppHealthITC1468
Cc: WDC-CLIENT-OuraITCService-EXTERNAL-CONTACTS
Subject: ITC Inv. No. 337-1468: Oura Document Production and Notice of Inspection
Attachments: 2026.03.31 1468 Oura's Document Production Letter.pdf; OURA_PHYS Production Slip Sheets.zip

Counsel,

Please see the attached document production letter. The passwords will be sent separately.

We also write to provide notice that Oura is making the following physical products available for inspection in at Mayer Brown's Washington, D.C. office upon reasonable notice:

- OURA_PHYS_0001 (Oura Ring Gen 1 Samples)
- OURA_PHYS_0002 (Oura Ring Gen 2 Sample)
- OURA_PHYS_0003 (Oura Ring Gen 3 Samples, torn-down and new)
- OURA_PHYS_0004 (Oura Ring Gen 4 Samples, torn-down and new)
- OURA_PHYS_0005 (Oura Ring Gen 4 Ceramic Samples, torn-down and new)
- OURA_PHYS_0006 (Oura [REDACTED] Ring Samples, torn-down and new)
- OURA_PHYS_0007 (Oura [REDACTED] Ring Samples, torn-down and new)
- OURA_PHYS_0008 (Samsung Galaxy Ring Samples, torn-down and new)
- OURA_PHYS_0009 (Zepp Amazfit Helio Ring Samples, torn-down and new)
- OURA_PHYS_0010 (Reebok Smart Ring Samples, torn-down and new)
- OURA_PHYS_0011 (Motiv Smart Ring Samples)

Regards,
Tiffany

Tiffany A. Miller

Partner

Mayer Brown LLP

1999 K Street, NW

Washington, DC 20006-1101 United States of America

T +1 202 263 3121

tmiller@mayerbrown.com

mayerbrown.com

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 4** was served upon the following as indicated below on September 10, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*